

IN RE: HANSEN

Case Number: 25CV-0207879

Tentative Ruling on Petition for Change of Name: Petitioner Van Tran Hansen seeks to change the name of her minor daughter. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. No proof of publication has been provided. Additionally, when a petition to change the name of a minor is brought by one parent only, the nonconsenting parent must be personally served with the notice of hearing or order to show cause at least 30 days before the hearing date. See CCP § 1277(a)(4). In the alternative to personal service, the Court may order notice be given in another manner the Court determines is reasonably calculated to give actual notice to the non-consenting parent. CCP § 1277(a)(4). The Court notes that the Petition indicates that the father's address is in Vietnam. The Court will permit service by mail. This matter is continued to **Monday, October 20, 2025, at 8:30 a.m. in Department 64** to permit service on the father. Petitioner shall file an Amended Order to Show Cause ("Amended OSC") for the continued hearing date. The Amended OSC and Petition must be mailed to the father at least 50 days before the continued hearing date. (30 days are required for notice, and 20 additional days are required for mailing outside the U.S. per CCP 1005(b).) Proof of service on the father must be filed with the Court. No appearance is necessary on today's calendar.

HEARDEN, ET AL. VS. WINDSOR REDDING CARE CENTER, LLC, ET AL.

Case Number: CVPO21-0198083

Tentative Ruling on Motion to Compel Deposition of Jerry Staffing, LLC's Person Most Qualified: The present motion is unopposed. Plaintiffs move to compel the deposition of Defendant Jerry Staffing, LLC's Person Most Qualified on the topic of Organizational Structure pursuant to CCP § 2025.450. Plaintiffs also request sanctions in the amount of \$2,452.50. Finally, Plaintiffs are seeking issue and evidentiary sanctions.

Merits of Motion. CCP § 2025.450 permits a noticing party to move for an order compelling the deposition if the deponent fails to appear. Plaintiffs have established that they noticed the deposition of PMQ of Jerry Staffing, LLC. Despite multiple continuances the PMQ deponent has never appeared for his/her deposition. Plaintiffs previously moved to compel the deposition, but the motion was denied based on Defendants' representations that the PMQ would be set and occur. Despite these representations, the deposition has not occurred, and the present motion was filed. The Court finds that PMQ deposition shall occur, and an order will issue to compel the deposition.

Sanction. If a motion under CCP § 2025.450 is granted, the imposition of monetary sanctions is mandatory against the deponent or party, unless the court finds that the one subject to the sanctions acted with substantial justification or that other circumstances make the imposition of sanctions unjust. CCP § 2025.450(g). Defendants have not filed an opposition to this motion and therefore have provided no justification or other circumstance to make the imposition of sanctions unjust. Monetary sanctions will be awarded as requested in the amount of \$2,452.50.

Plaintiffs have also requested various evidentiary and issue sanctions. CCP § 2023.030(b). The Court finds that the imposition of evidentiary or issue sanctions is unwarranted under the current circumstances. While there have been prior discovery disputes, there was no prior order compelling this deposition to occur.

The motion is **GRANTED**. Monetary sanctions are awarded in the amount of \$2,452.50. A proposed order was lodged with the Court and will be modified to conform to the Court's final ruling.